

Court No. - 3

Case :- WRIT - C No. - 23082 of 2022

Petitioner :- Gaurav

Respondent :- State of U.P. and Another

Counsel for Petitioner :- S.S. Rajput

Counsel for Respondent :- C.S.C.,Alok Mishra

Hon'ble Surya Prakash Kesarwani,J.

Hon'ble Surendra Singh-I,J.

Heard Sri S.S. Rajput, learned counsel for the petitioner, learned standing counsel for the State-respondents and Sri Anuj Tripathi, Advocate holding brief of Shri Alok Mishra, learned counsel for the respondent No. 2.

This writ petition has been filed praying for the following relief:

"I. Issue a writ, order or direction in the nature of Certiorari to quashing the Demand Notice No. 5415445 dated 19-10-2020 for Rs. 271669=00 issued by Respondent No. 2.

II. Issue a writ order or direction in the nature of mandamus commanding the respondent concerned not to take coercive measure in connection of said demand notice."

Learned counsel for respondent no. 2 states that the final order has been passed by the respondents which is occurring at page no. 18 of the writ petition.

We have perused the paper filed at page no. 18 of the writ petition and find that it is not a final order.

Sri Anuj Tripathi, learned counsel for the respondent No. 2, Executive Engineer (Prescribed Authority) Electricity Distribution Division-I, Aligarh states that the petitioner may file objection against the impugned demand which shall be decided in accordance with law within a time bound period.

In view of the aforesaid and without expressing any opinion on merits of the case of the petitioner, **this writ petition is disposed off** giving liberty to the petitioner to submit his objection under **Para 6.8 of U.P. Electricity Supply Code, 2005** before the respondent No. 2, within four weeks from today along with a certified copy of this order. In the event such an objection is submitted within the stipulated period, it shall be decided by the respondent No. 2 in accordance with law within next four weeks, after affording reasonable opportunity of hearing to the petitioner.

For a period of eight weeks or till disposal of the objection of the petitioner, whichever is earlier, no coercive action shall be taken against the petitioner in pursuance of the impugned demand.

Order Date :- 16.8.2022

Brijesh Maurya